

2:00 PM

LINE 18

25-CLJ-04634

WELLS FARGO BANK, N.A. VS. FRANCISCO J TORIBIO

WELLS FARGO BANK, N.A.
FRANCISCO J TORIBIO

EDGAR B LOPEZ
PRO SE

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court GRANTS plaintiff Wells Fargo Bank, N.A.'s unopposed motion to deem facts admitted.

On August 20, 2025, plaintiff served by mail defendant Francisco J. Toribio with requests for admissions. (Declaration of Edgar B. Lopez, ¶¶ 2, 3 & Ex. 1.) More than thirty-five days have passed and there have been no responses. Plaintiff sent a meet-and-confer letter to defendant and there has been no response. (*Id.*, ¶ 5, Ex. 2.) Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 19

26-CIV-03692

HILLTOP 5, LLC VS. JIANGUANG ZHANG, ET AL.

HILLTOP 5, LLC
JIANGUANG ZHANG

KEVIN S EIKENBERRY

DEFENDANT ZERS DOUGLAS, LLC'S MOTION TO EXPUNGE LIS PENDENS

TENTATIVE RULING:

Defendant Zers Douglas, LLC ("Zers LLC") moves for an order expunging a lis pendens filed by Plaintiff Hilltop 5, LLC, pursuant to Code of Civil Procedure section 405.30 on real property located at 524 Oak Grove Avenue, Burlingame, CA (the Property).

A party to an action who asserts a "real property claim" may record a notice of pendency of action ("lis pendens") in the office of the recorder of each county in which the real property is situated. (Code Civ. Proc., § 405.20.) A "real property claim" is defined as "[a] cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading." (Code Civ. Proc., § 405.4.)

Defendant argues that Plaintiff's pleading does not contain a real property claim because Plaintiff seeks only declaratory relief and that Plaintiff's ultimate objective is not to take title but to satisfy a money judgment. The Court disagrees because the declaratory relief claim is based upon a real property claim that supports a valid lis pendens.

Plaintiff obtained an abstract judgment against Defendant Zhang and recorded it with the San Mateo County Recorder's Office, creating a judgment lien against Defendant Zhang that attaches to all interests in real property held by Zhang. (Eikenberry Decl., ¶ 10, Ex. C, Recorded Abstract Judgment; *See also*, Code Civ. Proc., §§ 697.310, subd. (a), 697.340, subd. (a).) Plaintiff's complaint alleges that Defendant Zhang is using Defendant Zers LLC as an alter-ego to hold title to real property such that the property cannot be reached by Plaintiff and other creditors. A successful judgment in this action would result in the property being treated as belonging to Defendant Zhang and thus subject to Plaintiff's judgment lien. Such a judgment would affect the title of the Property. For the purpose of this motion, the allegations in the Complaint sufficiently support the claim that Zhang has used Zers LLC as an alter-ego and that the latter holds title to the Property for the benefit of Zhang.

Under Code of Civil Procedure section 405.33, the Court shall order a conditional expungement where "the real property claim has probably validity, but adequate relief can be secured to the claimant by the giving of an undertaking." Here, a conditional expungement is appropriate because the real property claim has probable validity but Plaintiff is interested only in the monetary value of the property. (*See Trapasso v. Superior Court* (1977) 73 Cal.App.3d 561, 567-
